
NON-DISCLOSURE AGREEMENT

Defense Subcontracting — ITAR-Controlled Technical Data (Receiving Party)

BETWEEN

Stratos Defense & Aerospace LLC 1700 Defense Parkway, Arlington VA 22201 Cage Code: 7H4K2 | ITAR
Registered: M-12345

— and —

NovaTech Solutions Inc. 450 Serra Mall, Palo Alto, California 94305 | Delaware Corporation (the
"Receiving Party")

Reference: **SDA-NDA-ITAR-2024-0031**

Date: **3 February 2025**

Governing Law: **Commonwealth of Virginia, United States**

Confidentiality Level: **CONTROLLED UNCLASSIFIED INFORMATION — ITAR RESTRICTED**

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ITAR NOTICE: THIS AGREEMENT CONTAINS PROVISIONS RELATING TO INFORMATION SUBJECT TO THE INTERNATIONAL TRAFFIC IN ARMS REGULATIONS (ITAR), 22 C.F.R. PARTS 120-130, ADMINISTERED BY THE U.S. DEPARTMENT OF STATE, DIRECTORATE OF DEFENSE TRADE CONTROLS (DDTC). UNAUTHORISED DISCLOSURE OR TRANSFER OF ITAR-CONTROLLED TECHNICAL DATA MAY RESULT IN CRIMINAL PENALTIES OF UP TO USD 1,000,000 PER VIOLATION AND/OR IMPRISONMENT FOR UP TO TEN (10) YEARS UNDER 22 U.S.C. 2778. THE RECEIVING PARTY IS STRONGLY ADVISED TO OBTAIN INDEPENDENT EXPORT CONTROL LEGAL ADVICE BEFORE EXECUTING THIS AGREEMENT.

1. DEFINITIONS

1.1 In this Agreement:

"Agreement" means this Non-Disclosure Agreement;

"Confidential Information" has the meaning in Section 2;

"DDTC" means the Directorate of Defense Trade Controls, U.S. Department of State;

"Effective Date" means 3 February 2025;

"ITAR" means the International Traffic in Arms Regulations, 22 C.F.R. Parts 120-130, as amended from time to time;

"ITAR-Controlled Technical Data" means any technical data as defined in 22 C.F.R. 120.10 that is subject to ITAR and appears on the United States Munitions List (USML) pursuant to 22 C.F.R. Part 121, including but not limited to technical data in categories VI (Surface Vessels of War), VIII (Aircraft), XI (Military Electronics), and XV (Spacecraft);

"Purpose" means the evaluation of a potential subcontracting relationship between Stratos and the Receiving Party in connection with a U.S. Department of Defense prime contract;

"Receiving Party" means NovaTech Solutions Inc.;

"Security-Cleared Officer" means an officer of the Receiving Party who holds a U.S. government security clearance at a level appropriate to the classification level of the relevant Confidential Information;

"US Person" has the meaning in 22 C.F.R. 120.62;

2. CONFIDENTIAL INFORMATION

2.1 **"Confidential Information"** means all information disclosed by Stratos to the Receiving Party in connection with the Purpose, including: (a) proprietary technical data, engineering designs, schematics, and manufacturing specifications; (b) source code, firmware, and embedded software; (c) **ITAR-Controlled Technical Data, including information classified on the USML under 22 C.F.R. Parts 120-130**, the disclosure of which to a foreign national or to a non-US Person requires a licence or other authorisation from DDTC; (d) subcontract terms, pricing, and schedule information; and (e) government contract terms and related compliance obligations.

2.2 **ITAR Acknowledgement.** The Receiving Party specifically acknowledges that: (a) certain Confidential Information constitutes ITAR-Controlled Technical Data; (b) the unauthorised export, re-export, or transfer of ITAR-Controlled Technical Data may constitute a violation of ITAR carrying criminal penalties of up to USD 1,000,000 per violation and/or 10 years' imprisonment; and (c) any breach of this Agreement with respect to ITAR-Controlled Technical Data may simultaneously constitute an ITAR violation.

2.3 **Exclusions.** Standard exclusions apply for publicly available information, prior knowledge, and independent development. **ITAR-Controlled Technical Data is explicitly and irrevocably excluded**

from all four standard exclusions under this Agreement. Information that otherwise qualifies as public domain, previously known, or independently developed but falls within the USML definition of technical data or is subject to ITAR control shall remain subject to the full confidentiality obligations of this Agreement and shall be treated as ITAR-Controlled Technical Data for all purposes hereof.

3. OBLIGATIONS OF THE RECEIVING PARTY

3.1 The Receiving Party shall protect all Confidential Information using the same degree of care as its own most sensitive proprietary information and in any event using measures consistent with U.S. federal export control requirements, NIST Special Publication 800-171, and applicable DoD cybersecurity requirements (CMMC Level 2 or as applicable).

3.2 **US Person Restriction.** The Receiving Party shall restrict access to ITAR-Controlled Technical Data exclusively to US Persons as defined in 22 C.F.R. 120.62. No ITAR-Controlled Technical Data shall be disclosed to any non-US Person, regardless of whether such person is an employee, contractor, or agent of the Receiving Party, without first obtaining the applicable export licence or Technical Assistance Agreement (TAA) from DDTC.

3.3 **Deemed Export Compliance — Transfer of Responsibility.** The Receiving Party acknowledges that the transfer of ITAR-Controlled Technical Data to non-US national employees of the Receiving Party constitutes a "deemed export" under 22 C.F.R. 120.17 requiring a DDTC licence. **The Receiving Party expressly accepts full responsibility for assessing deemed export risk with respect to its own personnel and for obtaining all necessary DDTC licences or authorisations before sharing any ITAR-Controlled Technical Data with any non-US national, including its own employees, contractors, and agents.**

3.4 **Officer Personal Liability.** The obligations of this Section 3 apply not only to the Receiving Party as a legal entity but also to the individual **officers, directors, and key employees** of the Receiving Party who have access to ITAR-Controlled Technical Data. Each such individual, by accessing ITAR-Controlled Technical Data, hereby accepts personal responsibility for compliance with this Agreement and all applicable ITAR provisions. The Receiving Party shall ensure that each such individual signs a personal compliance acknowledgement in the form approved by Stratos prior to accessing ITAR-Controlled Technical Data.

4. TERM — DUAL TIER

4.1 Non-ITAR Confidential Information: ten (10) years from the Effective Date.

4.2 **Perpetual ITAR Obligations.** Obligations with respect to ITAR-Controlled Technical Data shall be **perpetual and shall not expire**. The Receiving Party acknowledges that this perpetual obligation is required by and consistent with applicable U.S. export control law, which imposes indefinite controls on ITAR-Controlled Technical Data regardless of commercial agreements to the contrary.

5. PERMITTED DISCLOSURES — RESTRICTED

5.1 Any disclosure required by applicable U.S. law, court order, or regulatory authority must be preceded by the Receiving Party obtaining the prior written consent of Stratos, except where such consent cannot lawfully be sought within the time required. Where ITAR requires mandatory disclosure to U.S. government authorities, the Receiving Party shall provide Stratos with not less than five (5) Business Days' advance written notice where legally permissible, and shall limit disclosure to the minimum required.

6. RETURN AND DESTRUCTION — DOD STANDARDS

6.1 All ITAR-Controlled Technical Data shall be destroyed using **DoD-compliant data destruction methods as specified in NIST Special Publication 800-88, Revision 1 (Guidelines for Media Sanitization)**. Physical media shall be degaussed and/or physically destroyed. Electronic data shall be purged using DoD 5220.22-M sanitisation procedures.

6.2 Destruction shall be certified in a written Certificate of Destruction identifying: (a) each item of ITAR-Controlled Technical Data destroyed by category and USML classification; (b) the destruction method applied; (c) the date and location of destruction; and (d) signed by a **Security-Cleared Officer** of the Receiving Party. The Certificate shall be delivered to Stratos within five (5) Business Days of completion of destruction.

7. REMEDIES — LIQUIDATED DAMAGES

7.1 The Receiving Party irrevocably pre-consents to the entry of injunctive relief without bond.

7.2 **Liquidated Damages.** In the event of any breach of this Agreement, the Receiving Party shall pay to Stratos liquidated damages of **USD 2,000,000 (two million United States dollars) per breach**, plus all costs of enforcement including reasonable attorneys' fees and expert witness costs. The parties agree that this amount represents a reasonable pre-estimate of the minimum harm, given the defence and national security context. The liquidated damages are cumulative and not exclusive of any other remedy.

7.3 **Arbitration Confidentiality.** Any arbitration arising from this Agreement shall be conducted confidentially. **The Receiving Party agrees that the existence, proceedings, and outcome of any arbitration shall not be disclosed to any third party, including any regulatory authority, government agency, or competitor**, except to the extent required by applicable law.

15. NOTICES

15.1 Any notice, demand, request, or other communication required or permitted to be given under or in connection with this Agreement shall be in writing and shall be delivered: (i) by hand; (ii) by internationally recognised overnight courier service; (iii) by registered or certified mail, return receipt requested, postage prepaid; or (iv) by electronic mail with confirmation of receipt and a hard copy sent by one of the foregoing methods within two (2) business days of transmission.

15.2 Notices shall be addressed as follows:

If to Stratos Defense & Aerospace LLC:

1700 Defense Parkway, Arlington, VA 22201, United States

Attention: Vice President, Legal & Contracts, Stratos Defense & Aerospace LLC

If to NovaTech Solutions Inc.:

450 Serra Mall, Palo Alto, California 94305, United States

Attention: General Counsel, NovaTech Solutions Inc.

15.3 Notices shall be deemed to have been duly given: (a) upon delivery, if delivered by hand; (b) on the next business day after despatch, if sent by overnight courier; (c) on the fifth (5th) business day after posting, if sent by registered mail; or (d) upon electronic confirmation of receipt, if sent by email, provided that the hard copy is despatched within two (2) business days thereafter. Either party may change its notice address by giving written notice to the other party in accordance with this Section 15.

16. ASSIGNMENT

16.1 Neither party may assign, transfer, delegate, or otherwise dispose of any of its rights or obligations under this Agreement, whether by operation of law or otherwise, without the prior written consent of the other party, such consent not to be unreasonably withheld, conditioned, or delayed. Any purported assignment in violation of this Section 16 shall be null and void and of no force or effect.

16.2 Notwithstanding Section 16.1, either party may, without the consent of the other party, assign its rights and obligations under this Agreement to: (a) an affiliate of the assigning party; or (b) a successor entity in connection with a merger, acquisition, reorganisation, or sale of all or substantially all of the assigning party's assets or business to which this Agreement relates, provided that: (i) the assignee assumes in writing all of the assigning party's obligations under this Agreement; (ii) the assigning party provides the other party with prompt written notice of such assignment; and (iii) the assignment does not result in a reduction of the protections afforded to the other party under this Agreement.

17. ENTIRE AGREEMENT

17.1 This Agreement, together with any schedules and exhibits attached hereto and incorporated herein by reference, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous negotiations, representations, warranties, understandings, letters of intent, term sheets, and agreements, whether oral or written, relating to such subject matter. Each party acknowledges that it has not relied on any representation, warranty, or undertaking that is not set out in this Agreement.

17.2 The parties agree that the recitals set out at the beginning of this Agreement form part of this Agreement and are incorporated herein by reference.

18. AMENDMENTS

18.1 No modification, amendment, or waiver of any provision of this Agreement shall be effective unless made in writing and duly executed by authorised representatives of both parties. No oral amendment or modification of this Agreement shall be binding on either party regardless of any course of dealing or course of performance between the parties.

19. SEVERABILITY

19.1 If any provision of this Agreement is held by a court or tribunal of competent jurisdiction to be invalid, illegal, void, or unenforceable under applicable law, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the validity, legality, and enforceability of the remaining provisions of this Agreement shall not in any way be affected or impaired thereby, provided that the economic and legal substance of the transactions contemplated by this Agreement is not affected in any manner materially adverse to either party.

19.2 If any provision of this Agreement is held to be invalid or unenforceable as written but would be valid or enforceable if modified, such provision shall apply with the modification necessary to make it valid and enforceable under applicable law, and the parties agree to negotiate in good faith a replacement provision that, to the greatest extent possible, achieves the original intent and economic effect of the invalid or unenforceable provision.

20. WAIVER

20.1 No failure or delay by either party in exercising any right, power, or privilege under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power, or privilege preclude any other or further exercise thereof or the exercise of any other right, power, or privilege. No waiver of any provision of this Agreement shall be effective unless made in writing and signed by a duly authorised representative of the waiving party.

20.2 The rights and remedies provided in this Agreement are cumulative and not exclusive of any other rights or remedies that a party may have at law or in equity.

21. NO PARTNERSHIP, AGENCY, OR JOINT VENTURE

21.1 Nothing in this Agreement shall be construed to create a partnership, joint venture, employment relationship, or agency relationship between the parties. Neither party shall have any right, power, or authority to bind or obligate the other party in any manner or make any representation on behalf of the other party without the prior written consent of such other party. Each party shall remain an independent contractor in relation to the other party.

22. COUNTERPARTS AND ELECTRONIC SIGNATURES

22.1 This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which, taken together, shall constitute one and the same instrument. Delivery of an executed counterpart of a signature page by electronic transmission (including PDF, DocuSign, or similar electronic signature platform) shall be equally effective as delivery of a manually executed counterpart. A party that delivers a counterpart by electronic transmission shall promptly thereafter deliver a manually executed counterpart to the other party, but failure to do so shall not affect the validity or enforceability of this Agreement.

22.2 Electronic signatures applied through a recognised electronic signature platform (including DocuSign, Adobe Sign, or equivalent) shall constitute valid and binding signatures for the purposes of this Agreement and shall have the same legal effect as handwritten signatures to the fullest extent permitted by applicable law, including the Electronic Signatures in Global and National Commerce Act (E-SIGN Act), the Uniform Electronic Transactions Act (UETA), and any applicable foreign equivalent.

23. FORCE MAJEURE

23.1 Neither party shall be in breach of this Agreement or liable to the other party for any delay in performing, or failure to perform, any of its obligations under this Agreement (other than payment obligations) if and to the extent that such delay or failure results from events, circumstances, or causes beyond its reasonable control, including acts of God, pandemic, epidemic, war, terrorism, civil disturbance, government action, regulatory change, or failure of third-party telecommunications or internet infrastructure (a "Force Majeure Event"). In such circumstances, the affected party shall: (a) notify the other party in writing promptly upon becoming aware of the Force Majeure Event; (b) use all reasonable endeavours to mitigate the effect of the Force Majeure Event; and (c) resume performance as soon as reasonably practicable after the cessation of the Force Majeure Event.

23.2 If a Force Majeure Event continues for a period in excess of sixty (60) consecutive days, either party may terminate this Agreement on ten (10) days' written notice to the other party, without liability to either party for such termination.

24. GOVERNING LAW AND DISPUTE RESOLUTION

24.1 **Governing Law.** This Agreement and any dispute, controversy, or claim arising out of or in connection with it or its subject matter, formation, existence, negotiation, validity, termination, or enforceability (including non-contractual disputes or claims) shall be governed by and construed in accordance with the laws of **Commonwealth of Virginia, United States**, without regard to its conflict of laws principles.

24.2 **Jurisdiction.** Each party irrevocably agrees that the courts of **the courts of the Commonwealth of Virginia (Arlington County) and mandatory AAA arbitration (Arlington, VA)** shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation. Each party irrevocably waives any objection to the courts of the courts of the Commonwealth of Virginia (Arlington County) and mandatory AAA arbitration (Arlington, VA) on the grounds of inconvenient forum or any other grounds.

24.3 **Injunctive Relief.** Notwithstanding the foregoing, either party may seek urgent interlocutory or interim injunctive relief from any court of competent jurisdiction without waiving its right to invoke the dispute resolution procedure set out in this Section 24.

IN WITNESS WHEREOF

EXECUTED as a legally binding agreement on the date first written above.

SIGNED for and on behalf of

Stratos Defense & Aerospace LLC

Signature: _____

Print Name: [NAME]

Title: Vice President, Legal & Contracts

Date: _____

Witness Name: _____

Witness Sig.: _____

SIGNED for and on behalf of

NovaTech Solutions Inc.

Signature: _____

Print Name: [NAME]

Title: General Counsel

Date: _____

Witness Name: _____

Witness Sig.: _____